ALEX MUNDIYA
versus
FREDDY CHIMBARI N.O
(In his capacity as the Executor of the Estate Late Sydney Muchineripi DR 2516/23)
and
THE MASTER OF THE HIGH COURT N.O
and
ABIGAIL TAWONEZVI
and
SIMBARASHE MUCHINERIPI
and
ASHLEIGH MUCHINERIPI

HIGH COURT OF ZIMBABWE
MAXWELL J
HARARE; 12 May & 25 June 2026

Court Application - Review

G Makina & TV Muvhami, for the applicant
B Murenga, for the 3rd – 5th respondent
No appearance for the 1st and 2nd respondent

MAXWELL J:

Applicant approached the court seeking the setting aside of the first and second respondents' decision to treat his creditor's claim as rejected and excluding it from the administration of the Estate Late Sydney Muchineripi. He sought an interdict against the finalization or distribution of the estate in a manner that excludes his claim. Applicant stated that the facts germane to the application and the grounds in support of the application are as follows;

During his lifetime, the late Sydney Muchineripi borrowed from applicant the sum of ten thousand United States Dollars (US$10 000.00). The deceased acknowledged the indebtedness and during his lifetime executed a sworn affidavit confirming the loan and his obligation to repay it. The deceased passed away before settling the debt. Upon registration of the deceased estate, applicant duly lodged a creditor's claim with the first respondent supported by the affidavit

executed by the deceased. The first respondent accepted the claim as a valid liability of the estate. The acceptance was subsequently confirmed by the second respondent in the exercise of his statutory supervisory functions.

Beneficiaries of the estate thereafter instituted review proceedings under HCHF 3018/25 challenging the decision of the first and second respondents to accept the creditors' claims against the estate on the basis that the claims were not substantiated. Applicant was not cited as a party to those proceedings. The first and second respondents did not oppose the application for review. The application was granted. The decision of the first and second respondents was set aside.

Applicant states that he only became aware of the court order upon being invited to a meeting held at second respondent's offices on 21 November 2024. Officials from second respondent's offices advised the interested parties that from their interpretation of the order, first respondent was no longer required to accept the claims since this court had directed the first respondent to decline the claims. Applicant requested for the second respondent's position to be put in writing. He learnt that first respondent had been directed by the second respondent to lodge a new distribution account which excludes his claim as a creditor. He expressed the view that the court order in HCHF 3018/25 did not direct the rejection of the creditor's claims but merely nullified the prior acceptance. As a consequence, the proper course was for the first respondent to reconsider the claims afresh, apply his mind to their merits, and either accept or reject them in accordance with the Administration of Estates Act, subject to the supervision of the second respondent. Applicant submitted that he was not afforded an opportunity to be heard before the decision was taken to exclude his claim from the estate. He was not invited to make representations before the directive to exclude creditors' claims was issued in violation of the *audi alteram partem* rule. Applicant submitted further that his constitutional right to lawful, reasonable and procedurally fair administrative conduct as guaranteed in s 68 of the constitution was infringed. In addition, his right to a fair hearing in the determination of his civil rights and obligations under s 69 of the Constitution was also infringed. He accused the first and second respondents of arbitrarily depriving him of his rights as a creditor and submitted that their conduct is irrational and unreasonable. He concluded that the decisions and conduct of the first

and second respondents are unlawful, procedurally unfair, irrational and unconstitutional and ought to be set aside.

The third respondent deposed to the opposing affidavit on behalf of herself as well as fourth and fifth respondents. She is the surviving spouse of the deceased and the biological mother of fourth and fifth respondents. Third respondent submitted that the matter is *res judicata* as it was decided in HCHF 3018/25. On the merits she argued that first and second respondents acted in accordance with the law. She pointed out that they requested to see the original copy of the alleged affidavit and it was never produced. She disputed that the affidavit was authored by her late husband. She pointed out that applicant failed to give a reasonable explanation of why the affidavit allegedly signed by the deceased was not disclosed early. In her view applicant is trying to re-litigate issues already decided and circumvent the previous court order.

Whether the principle of *Res Judicata* applies.

The requirements for a plea of *res judicata* are:

a) the action in which judgment is given must be founded on the same cause of action.

b) the action or judgment must involve the same subject matter, and

c) the action must concern the same party/parties.

See *Tobacco Sales (Pvt) Ltd* v *Eternity Star Investments* 2006 (2) ZLR 293.

Whilst the subject matter and cause of action *in casu* is similar to that in HCHF 3018/25, the parties are not the same. One of the requirements for the principle of *res judicata* to apply is missing. Moreover in *Chipembe & Ors* v *Ushewokunze Housing Cooperative Society Ltd and Ors* HH 447/25 the court went further to state that for the principle of *res judicata* to apply, the matter ought to have been determined on its merits. It is common cause that HCHF 3018/25 was decided in default of the respondents therein. There is no indication that the merits of the matter were considered. Accordingly the principle of *res judicata* does not apply to the circumstances of this court.

I make the following order.

The preliminary point be and is hereby dismissed.

The matter will be set down for hearing on the merits on the next available date.

MAXWELL J:……

Muvhami Attorneys, Applicant's legal practitioners
MT Chiwaridzo Attorneys-At-Law, Third – Fifth Respondent's Legal Practitioners